

TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC, et al

24CF14779

PLAINTIFF'S MOTION TO DETERMINE APPEARANCE; PLAINTIFF'S MOTIONS TO COMPEL ANSWERS AND DEEM MATTERS ADMITTED

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units by Plaintiff from Defendants Barrett Farms LLC ("Barrett"), Wildseed LLC ("Wildseed"), Michael McClaren ("McClaren"), and Dashiel Miller ("Miller.")

Now before the Court are several motions filed by Plaintiff. In the interest of judicial efficiency, the motions will be considered together. The first three motions are motions to compel discovery filed by Plaintiff against Miller and Barrett. Plaintiff has also filed a motion to "determine appearance and request for entry of default" as to Barrett. Defendants have not filed any opposition to any of the motions.

I. Facts Relevant to the Motions

A. Barrett's Appearance

On September 30, 2024, Plaintiff filed its Complaint against Barrett and Does 1-10. On December 20, 2024, Plaintiff filed proof of service of the Complaint and summons on Barrett by personal service. At a Case Management Conference ("CMC") on January 8, 2025, Miller (who is not an attorney) appeared on behalf of Barrett. At that CMC, the Court noted that the Complaint had been properly served and that no answers had been filed. On that same date, Miller offered an Affidavit in response to the Complaint which was "filed on demand" by the court clerk. The Answer does not reference Barrett or attempt to respond on behalf of Barrett.

On May 9, 2025, Plaintiff filed a First Amended Complaint ("FAC") which added Wildseed, McClaren and Miller as defendants. Plaintiff filed a proof of service of the

FAC on Barrett on 8/20/25. On August 19, 2025, McClaren and Wildseed filed an Answer to the FAC as well as a cross-complaint against Barrett and Miller.

On October 13, 2025, Plaintiff filed a Request for Entry of Default against Barrett. (Declaration of Zachary Drivon in Support of Motion to Enter Default (“Drivon Default Decl.”) ¶ 4, Ex. C.) The Clerk denied the request on the grounds that Barrett had made a first appearance in the case. (*Ibid.*)

Barrett is an LLC and Miller is not a licensed attorney. (Drivon Default Decl. ¶ 5.)

On July 25, 2025, Plaintiff served Defendants Barrett, Wildseed, McClaren and Miller with initial sets of discovery, including: 1) Request for Admissions (“RFA”), 2) Special Interrogatories, Set One (“SROG”), and 3) Form Interrogatories, Set One (“FROG”). (Declarations of Zachary Drivon (“Drivon Decl.”) in support of motions, ¶2, Ex. A.) Miller and Barret failed to provide responses to any of the discovery requests and did not request any extensions. (*Id.* ¶¶ 4, 5.)

II. Legal Standard and Discussion

A. Appearance of Barrett

“[U]nder a longstanding common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.) Miller filed a purported Answer on his own behalf but has no authority to file one on behalf of Barrett. Additionally, as noted above the “affidavit” presented by Miller on 1/8/25 was “filed on demand” as the Clerk noted irregularities in the format; the “Affidavit will be treated as an Answer on behalf of Miller but is legally meaningless as to Barrett. Accordingly, Barrett has not entered an appearance in this matter.

Generally, a court may not strike the pleadings of a self-represented corporation without first giving them an opportunity to obtain counsel and cure the defect. (See *CLD Construction*, *supra*, 120 Cal.App.4th at pp. 1146–1147.)

Barrett is ordered to obtain counsel and file a responsive pleading within thirty days of this Order. **Based on the foregoing, the Motion to Determine Appearance and Enter Default is denied, without prejudice to refile in the event Barrett fails to timely and properly appear.**

B. Discovery

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiff served Miller and Barrett with RFAs on July 25, 2025. Miller and Barrett have not responded to the RFAs or to Plaintiff's meet and confer letter, have not responded to Plaintiff's counsel, and have not filed any opposition.

Accordingly, the Court **GRANTS Plaintiff's motion to deem the facts admitted as truth.**

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response then:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Miller and Barrett have failed to respond to the properly served FROGs and SROGs. Accordingly, the motion to compel responses to FROGs and SROGs is

GRANTED; Miller and Barret are to provide code complaint, verified responses, without objection within 30 (thirty) days of this Ruling.

III. Conclusion

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Orders on the discovery motions; Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling as to Barrett's (non) appearance.

FOOTE, et al. v GOTTA LUV PIZZA, et al

24CV47525

**PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF
CLASS ACTION SETTLEMENT**

This matter involves a class action for wage and hour violations. Now before the Court is Plaintiffs' motion for Preliminary Approval of Class Action Settlement.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion must include the following language:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED**, without prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.